

25STCP04712 25STCP04712

County: los-angeles

Division: Civil Law and Motion

Department: 836

Hearing date: 2026-08-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C836%2C08%2F25%2F2026

Source SHA-256: c34e8edbe26bee2da18eb2e5e5fae536f6a47a3c0dcf4d48a9a9b9db238d4411

Case Number: 25STCP04712 Hearing Date: August 25, 2026 Dept: 836

WILLIAM GUDE,

Petitioner,

Case No.

25STCP04712

vs.

CITY OF LOS ANGELES,

Respondent.

[TENTATIVE] RULING ON VERIFIED PETITION FOR WRIT

OF MANDATE

Dept. 836 (Hon. Curtis A. Kin)

Petitioner

William Gude seeks a writ of mandate directing respondent City of Los Angeles ("City")

to make available for inspection the Los Angeles Police Department's secondary

employment permits, film work permits, film-location audits, denial and appeal

records, and related policies from January 2019 to November 2022, pursuant to his request for public records pursuant under the California Public Records Act ("CPRA").

I. BACKGROUND

A.

Los

Angeles Police Department's Secondary Employment Program

LAPD officers can submit

a Permit for Secondary Employment (Form 01.47.00) or a Motion

Picture/Television Filming Work Permit (Form 01.47.01) to receive permission

from the Department to work off duty. (Tu Decl. ¶¶ 15–18, 23–24; RO 23 [Ex. 3:

Form 01.47.01]; RO 24-26 [Ex. 4: Form 01.47.01]; RO 33 [Ex. 7: LAPD Manual,

vol. 3, at § 744.20.) These permits require the following information: "officer's

[name], serial number, rank and division, the employer's name, address and

telephone number, the work location, days and hours, duties, restricted-duty

status, and insurance information." (Opp. at 6:3-5; Tu Decl. ¶ 16; RO 23-26 [Exs.

3-4].)

Before a permit can be

approved, the commanding officer must investigate each application. (Tu Decl. ¶

21; RO 33 [Ex. 7: LAPD Manual, vol. 3, at § 744.24].) If disapproval is

recommended, a reason must be provided in writing, and if approval is recommended, then the commanding officer must certify that the applicant is qualified to perform the listed duties on the application. (Tu Decl. ¶ 21; RO 33 [Ex. 7: LAPD Manual, vol. 3, at § 744.32].) If a work permit is denied, then it can be appealed first to the Chief of Police and then to the Board of Police Commissioners, on an Administrative Appeal, Form 01.84.00. (Tu Decl. ¶ 21; RO 34 [Ex. 7: LAPD Manual, vol. 3, at § 744.36].)

B.

CPRA

Request

On November 27, 2022,

petitioner submitted a request through City's NextRequest public records

request system, seeking "[r]ecords

containing requests for approval of payment for honoraria or other outside

earned income or employment by sworn LAPD officers such as LAMC sec. 49.5.7 or

LAPD Manual vol. I, sec. 270.30, made between Jan 1, 2019 and November 27,

2022." (Tu Decl. ¶¶ 6-7; RO 01-02 [Ex. 1: NextRequest No. 22-11983].)

On December 14, 2022, petitioner clarified the request by stating that the

request was for the following:

1. all requests for

approval/renewal/appeal of secondary employment per LAMC § 49.5.7 (C); 2. all requests for approval/renewal/appeal of secondary employment per LAPD Manual vol. I, sec. 270.30; 3. all requests for approval/renewal/appeal of secondary employment per LAPD Manual vol. III, sec. 744 (incl. subsections); 4. all requests for approval/renewal/appeal of secondary employment per any related laws or policies governing secondary employment by LAPD personnel[;] all filled-out forms 'permit for secondary employment,' known as form 01.47.00, (or any similar application form or renewal form); 5. all filled-out forms 'Motion picture/television filming work permit application/renewal,' form 01.47.01 (or any similar application form or renewal form); 6. all filled-out forms 'Motion picture/television filming work permit location audit,' (or any similar application form or renewal form); 7. all administrative appeals (form 01.84.00), or any similar form.

(Tu Decl. ¶ 8; see

also RO 10-11 [Ex. 1].)

On July 19, 2023, the Department produced records that

consist of two permit-tracking spreadsheets, which contained over 3,000

non-film and over 680 film entries with specific information regarding rank,

division, approval and expiration dates, and permit type. (Pet. Br. at 6; Tu

Decl. ¶ 27; RO 05 [Ex. 1].) In October 2023, the Department produced the 2020

through 2022 film-location audits with specific redactions.[1] (Tu

Decl. ¶¶ 26–29; RO 05 [Ex. 1].)

On September 3, 2023, petitioner, through counsel,

asserted that several of the claimed exemptions were not valid but agreed to

the redaction of private phone numbers, employee home addresses, and any

medical information. (Tu Decl. ¶ 11; RO 19-20 [Ex. 2].)

On December 8, 2025, petitioner filed the instant Verified

Petition for Writ of Mandate.

II. DISCUSSION

A.

Standard of Review

Pursuant to the CPRA,

individual citizens have a right to access government records. In enacting the

CPRA, the California Legislature declared that “access to information

concerning the conduct of the people’s business is a fundamental and necessary

right of every person in this state.” (Gov. Code § 7921.000; see also

Cal. Const. art. I, sec. 3(b); County of Los Angeles v. Superior Court (2012)

211 Cal.App.4th 57, 63.)

“[E]very person has a

right to inspect any public record” of a state or local agency subject to

statutory exemptions. (Gov. Code § 7922.530(a); see also Gov. Code § 7920.510(h) [definition of “local agency” includes agent of a city].) The California Constitution mandates that the CPRA be “broadly construed,” while any statute “that limits the right of access” must be “narrowly construed.” (See Cal. Const. art. I, sec. 3(b)(2); see also Nat’l Lawyers Guild v. City of Hayward (2020) 9 Cal.5th 488, 507.) The CPRA “does not allow limitations on access to a public record based upon the purpose for which the record is being requested, if the record is otherwise subject to disclosure.” (Gov. Code § 7921.300.)

“Any person may institute a proceeding...for a writ of mandate...to enforce that person’s right...to inspect or receive a copy of any public record or class of public records.” (Gov. Code § 7923.000.) “To establish an agency has a duty to disclose under [the CPRA], the petitioner must show that: (1) the record ‘qualif[ies] as [a] ‘public record[]’ ...; and (2) the record is ‘in the possession of the agency.’” (Anderson-Barker v Sup.Ct. (2019) 31 Cal.App.5th 528, 538.) “Whether a record falls within the statutory definition of a ‘public record’ involves a ‘distinct inquiry’ from whether the agency is in possession of that record.... The duty to disclose applies only when the petitioner has satisfied both elements.” (Id. at 539.)

CPRA exemptions must be

narrowly construed, and the agency bears the burden of showing that a specific

exemption applies. (*Sacramento County Employees' Retirement System v.*

Superior Court (2013) 195 Cal.App.4th 440, 453.) A public agency also has

the burden to demonstrate that it properly withheld records on the grounds they

are non-responsive to a CPRA request or do not constitute public records. (*ACLU*

of Northern Cal. v. Sup. Ct. (2011) 202 Cal.App.4th 55, 83-86.) ""Because

the agency has full knowledge of the contents of the withheld records and the

requester has only the agency's affidavits and descriptions of the documents,

its affidavits must be specific enough to give the requester 'a meaningful

opportunity to contest' the withholding of the documents." (*Id.* at 83.)

B.

Evidentiary

Matters

City's

request for the Court to take judicial notice of Exhibit 10 is GRANTED pursuant

to Evidence Code § 452(c), (d). (*Day v. Sharp* (1975) 50 Cal.App.3d 904,

914; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th

471, 482.)

With

respect to City's objections to the Reply Brief, the Court rules as follows. As for Objection No. 1, with respect to Exhibit A attached to the Declaration of Dorothy M. Gibbons-White, the objection is SUSTAINED on the ground that the evidence improperly incorporates argument by reference from a brief in a separate proceeding. (Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 294, fn. 20.) With respect to Objection No. 2, which concerns a hyperlink to an internet news article, it is SUSTAINED on the ground that it has not been authenticated. As for Objection No. 3, it is SUSTAINED on the ground that the unsworn factual assertions are not evidence. (In re Zeth S. (2003) 31 Cal.4th 396, 414.)

C.

Exemptions

Claimed by City Do Not Apply

City

argues that redacting or withholding the records is justified for the following reasons: (1) certain records are considered "personal data" contained in a peace officer's confidential personnel file under Penal Code §§ 832.7(a) and 832.8(a)(1); (2) disclosure of location information on the records would constitute an unwarranted invasion of privacy; and (3) the public interest served by not disclosing the records without specific redactions outweighs any public

interest in disclosure.

Before

turning to what is at issue in this matter, the Court first observes what is not at issue with respect to the records and information to be disclose pursuant to petitioner's CPRA request. In reply, petitioner concedes that information regarding the following should be redacted in the secondary employment permits and film permits: (1) "any individual officer's restricted duty status, as [well as] medical information"; (2) "each officer's personal home and cell telephone numbers and home address"; (3) "the phone numbers of the secondary employers"; and (4) "each officer's insurance information as it appears on the Form 01.47.01." (Reply at 1:20-24). With respect to film audits, petitioner agrees that "the redaction of witness and complainant names and contact information, and any information in the comment section that reveals witness identities or pertains to officer violations that could be construed as connected to the disciplinary process or would constitute complaint and investigation material under Penal Code § 832.8(a)(5)." (Reply at 6:25-7:4.) As for denied secondary employment requests and related appeals, petitioner appears willing to accept redactions where the reason for the denial is based on personnel or medical reasons. (Reply at 8-9.) The Court next turns to the remaining disputes over disclosure.

1.

Personnel

Records and Personal Data

City

contends that the records concerning denials and appeals relating to secondary employment permits are exempt altogether, because they constitute an officer's personnel records. (Opp. at 14-15.) The Court disagrees.

The

CPRA "does not require disclosure of records, the disclosure of which is exempted or prohibited pursuant to federal or state law, including, but not limited to, provisions of the Evidence Code relating to privilege." (Gov. Code § 7927.705.) Per Penal Code § 832.7(a), an officer's personnel records are disclosable only through a Pitchess motion. "Personnel records" includes records relating to "[e]mployee advancement, appraisal, or discipline." (Pen. Code § 832.8(a)(4).)

The

Court is unpersuaded by the City's view that a denial of an application for a secondary work permit constitutes an appraisal for purposes of rendering it a personnel record. If that were true, then approvals of a permit would necessarily also constitute such an appraisal,

because the commanding officer must perform some evaluation of the applicant officer and “certify that the concerned employee is qualified to perform the duties listed on the requested permit.” (RO 33 [Ex. 7: LAPD Manual, vol. 3, at § 744.32.]) And yet, the City recognizes that it must produce records of approvals, implicitly acknowledging that the certification (and evaluation) of an applicant’s ability to perform the particular duties listed on the permit application is different from an evaluation of the applicant’s performance of his regular duties as a member of the police department. Thus, so too must the City produce records of denials and appeals, because, much like the approvals, such records do not concern “advancement, appraisal, or discipline” as contemplated by Penal Code § 832.8(a)(4). Further, the mere fact that the records for the denials may include several more documents, consisting of intradepartmental correspondence and the grounds for denying the officer’s application, does not transform the denial into a personnel record appraisal of the officer’s ability to do their duties. (Tu Decl. ¶ 22.)

For the foregoing reasons, the denials of applications for secondary work and appeals of such denials are not, of themselves, privileged under Penal Code §§ 832.7(a) or 832.8(a)(1) and protected from disclosure.[2]

Privacy

City

also argues that disclosing the location information in the secondary work permits and the film audits constitutes an unwarranted invasion of personal privacy. (Opp. at 10:21-12:21, 13:18-23.) The Court disagrees

The

CPRA “does not require disclosure of personnel, medical, or similar files, the disclosure of which would constitute an unwarranted invasion of personal privacy.” (Gov. Code § 7927.700.)

“The public’s interest in the qualifications and conduct of peace officers is substantial, a circumstance that both diminishes and counterbalances any expectation officers may have that their names and employment as peace officers will be confidential.” (Commission on Peace Officer Standards & Training v. Superior Court [“POST”] (2007) 42 Cal.4th 278, 299.) “Peace officers ‘hold one of the most powerful positions in our society; our dependence on them is high and the potential for abuse of power is far from insignificant.’” (Ibid. [quoting City of Hemet v. Superior Court (1995) 37 Cal.App.4th 1411, 1428].)

City

claims, without meaningful evidence, that revealing the location where an

officer frequented in connection with a secondary employment permit would

implicate an invasion of personal privacy.[3]

In asserting this argument, City relies

on *Times Mirror Co. v. Superior Court* (1991) 53 Cal3d 1325. However, in

that case, the information that was sought belonged to the Governor, and the

Supreme Court reasoned that even outdated information gleaned from the

Governor's calendar could reveal patterns of activity and "identify areas of

particular vulnerability." (Id. at 1345-46.) The same cannot be said about

location information found in the permits and film audits for officers issued

roughly four to seven years ago. While location and temporal disclosures could

make an officer vulnerable to attack (see *CBS, Inc. v. Block*

(1986) 42 Cal.3d 646, 652), there is no evidence to suggest that the locational

information that petitioner seeks from secondary employment years ago would do

so in any way. City's safety concerns are speculative and do not warrant a

finding that the requested disclosure would result in an unwarranted invasion

of personal privacy. (*Long Beach Police Officers Ass'n v. City of Long Beach*

(2014) 59 Cal.4th 59 74 [finding "[v]ague safety concerns that apply to all

officers involved in shootings are insufficient to tip the balance against

disclosure of officer names"].)

Accordingly,

the Court finds that revealing the location information does not constitute an unwarranted invasion of personal privacy.

3.

Balancing

of Interests

Government

Code § 7922.000 states: “An agency shall justify withholding any record by demonstrating that the record in question is exempt under express provisions of this division, or that on the facts of the particular case the public interest served by not disclosing the record clearly outweighs the public interest served by disclosure of the record.”

In furtherance of their argument

that the requested location information would reveal an officer’s whereabouts, City asserts that this implicates the application of Government Code § 7922.000. In particular, City references a searchable online database of officer information that includes photographs of LAPD officers as well as other identifying information such as an officer’s name, serial number, photo, gender, ethnicity, division, rank, and financial payroll information. (Bislig Decl. ¶¶ 16-17.)

Even if the information sought here were to be added to that database, the outdated information found in these permits and film audits would at most only

establish where those officers had been, not where they will be. It is unclear to the Court how such information would lead to the harassment of officers when petitioner is not seeking information that would reveal their current whereabouts.

The

notion that a member of the public would be able to use old location information and combine it with the identifying information found in an online database to track down an officer to inflict harm on them is speculative. “‘A mere assertion of possible endangerment’ is insufficient to justify nondisclosure.” (Commission on Peace Officer Standards & Training v. Superior Court [“POST”] (2007) 42 Cal.4th 278, 302 quoting CBS, Inc. v. Block (1986) 42 Cal.3d 646, 652.) While undercover officers may be entitled to anonymity (POST, 42 Cal.4th at 301), City does not discuss how officers in general require anonymity to perform their duties or protect their own safety. Respondent fails to show that disclosure of the location of where officers had engaged in secondary employment at least four years ago “would increase the threat to officer safety presented by those with a generalized hostility toward law enforcement officers.” (Id. at 303.)

By contrast, by virtue of the

regulation of secondary employment under Penal Code § 70, it is clear the

public has an interest in learning about secondary employment of peace officers. The public has an interest in determining whether secondary employment contributes to fatigue of officers and interferes with the performance of their duties. The public may also be interested in knowing whether outside employment poses a conflict of interest. Absent any particularized and concrete safety or privacy concern posed by the disclosure of the particular information that petitioner has conceded as warranting redaction, e.g., medical information, officer personal contact information, insurance information, etc. (see Reply at 1, 6), the public's interest in information concerning secondary employment by LAPD officers outweighs any general interest by the City and the officers in nondisclosure.

III. CONCLUSION

For

the foregoing reasons, City having failed to demonstrate the application of any exemption, the Court finds that disclosure of denied applications and resulting appeals, as well as location information found in the records at issue, is warranted.

The petition is GRANTED. Pursuant to Local Rule 3.231(n), petitioner shall prepare, serve, and ultimately file a proposed judgment and proposed writ of mandate in accordance herewith.

[1] As represented by City, records of

film-location audits for 2019 have not been found. (Tu Decl. ¶ 14.)

[2] The Court

likewise rejects City's claim that the privacy exemption and catch-all

exemption in Government Code sections 7927.700 and 7922.000 apply to all denials

and appeals therefrom because such records purportedly involve personnel

material or negative evaluative determinations. (Opp. at 15:21-25.) Such

records do not invariably contain protected information such that they are

automatically given wholesale protection from disclosure irrespective of their

actual content. Rather, as recognized by petitioner, certain denials or appeals

based on officer-specific, protected information such as "[m]edical history" and

"[c]omplaints, or investigations of complaints" (see Penal Code §

832.8(a)(2), (5)), would warrant redaction of such particular information.

(Reply at 9:2-11.)

[3] Ultimately, the City's argument

meanders into the assertion that an officer's home address is not disclosable.

(Opp. at 10:25-11:5.) While it is hard

to quarrel with that assertion, petitioner is not requesting any such

information.